

24STCV25655 24STCV25655

County: los-angeles

Division: Civil Law and Motion

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TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

June 30, 2026

CASE NUMBER

24STCV25655

MOTIONS

Motion to Compel Production of Gunshot Residue Kit

MOVING PARTIES

Plaintiffs Ricardo Ramirez, Sr., Renee Villalobos, and the
Estate of Ricardo Ramirez, Jr.

OPPOSING PARTY

None

MOTIONS

Plaintiffs Ricardo

Ramirez, Sr., Renee Villalobos, and the Estate of Ricardo Ramirez, Jr., by and through Ricardo Ramirez, Sr. ("Plaintiffs") sued Defendants City of Los Angeles ("City") and Michael Pounds ("Pounds," collectively, "Defendants") based on the death of Decedent Ricardo Ramirez, Jr. ("Decedent"). Plaintiffs allege Pounds shot and killed Decedent while working as part of a vice unit for the Los Angeles Police Department. Plaintiffs seek to compel the Los Angeles County Department of the Medical Examiner ("Deponent") to produce the gunshot residue kit generated for Decedent's autopsy.

However, Plaintiff's

motion is procedurally deficient. First,

Plaintiffs failed to cite any authority in the notice of motion under which the Court could grant the relief Plaintiffs seek. The Court cannot

grant Plaintiff's motion based on authority other than the authority Defendant cites in its notice of motion. (See

Code Civ. Proc., § 1010 ["Notices must be in writing, and the notice of a motion, other than for a new trial, must state when, and the grounds upon which it will be made, and the papers, if any, upon which it is to be based"]; Cal.

Rules of Court, rule 3.1110(a) ["A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order"]; *People v. American Surety Insurance Co.* (1999) 75

Cal.App.4th 719, 726 [court concluded notice of motion made no reference to the fact of what the movant sought or the grounds for such relief, as required by rule 311(a) of the California Rules of Court, the predecessor to Rules of Court, rule 3.1110(a)].)

Second, to the extent Plaintiffs seek to

enforce a subpoena Plaintiffs served on Deponent, Plaintiffs were required to personally serve this motion on Deponent. (See Cal. Rules of Court, rule 3.1346 ["A written notice and all moving papers supporting a motion to compel . . .

production of a document or tangible thing from a nonparty deponent must be personally served on the nonparty deponent" unless the nonparty agrees otherwise].) Plaintiffs purportedly

served this motion on Deponent by mail, which is insufficient. (See *Proof of Service of Plaintiffs' Notice of Motion and Motion to Compel.*)

Finally, the Court has concerns a business

records subpoena could compel Deponent to produce a gunshot residue kit. A business records subpoena compels a

nonparty deponent to produce “an item, collection, or grouping of information about a business entity.” (Urban Pacific Equities Corp. v. Superior Court (1997) 59 Cal.App.4th 688, 693, emphasis deleted.) A business records subpoena cannot compel a nonparty deponent to produce “the product of a business entity.” (Ibid, emphasis deleted.)

In the instant case, the gunshot residue kit was created from the gunshot residue collected from Decedent's body. Plaintiffs are certainly entitled to use a business records subpoena to compel production of Deponent's records about the use of the gunshot residue kit for Decedent's autopsy, but the Court is unconvinced a business records subpoena could compel Deponent to produce the gunshot residue kit itself. Plaintiffs have not provided the Court with any statutory or case law authority in this regard.

Plaintiffs are ordered to provide notice of the Court's ruling and to file proof of service of same.